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Sheela Devi And Others v. Lal Chand And Another

Supreme Court Of India (Sep 29, 2006)

CASE NO.

Civil Appeal No. 4326 of 2006, decided on September 29, 2006

DISPOSITION

ALLOWED

JUDGES

- Justice S.B. Sinha
- Justice Dalveer Bhandari

ATTORNEY

- Nidhesh Gupta, Vinod Shukla and Ms S. Janani, Advocates, for the Appellants;
- Manoj Swarup, Advocate, for the Respondents.

SUMMARY**Factual and Procedural Background**

Tulsi Ram died in 1889, leaving five sons—Waliati, Babu Ram, Charanji Lal, Hukam Chand and Uggar Sain—who formed a Mitakshara coparcenary. After Uggar Sain died issueless in 1931, the revenue records were mutated in 1927 to record an equal 1/5th share for each surviving brother. Babu Ram died in 1989, survived by two sons (Lal Chand, born 1938; Sohan Lal, born 1956) and three daughters (the present appellants).

The two sons (respondent-plaintiffs) challenged the revenue mutation contending that the daughters had no right in the coparcenary *property* . The Subordinate Judge (17-5-1990) decreed their suit; the Additional District Judge affirmed on 23-5-1994; and the High Court of Punjab & Haryana dismissed the daughters' second appeal on 10-10-2005. The present appeal before the Supreme Court arises from that High Court judgment.

Legal Issues Presented

1. Whether succession to Babu Ram's interest in the joint family *property* on his death in 1989 is governed by Section 6 (coparcenary succession by survivorship) or Section 8 (intestate succession) of the Hindu Succession Act, 1956.
2. If Section 6 applies, what quantum of Babu Ram's interest devolves by survivorship and what portion devolves by intestate succession to all Class I heirs, including his daughters.

Arguments of the Parties

Appellants' Arguments (Daughters)

- The High Court erred in ignoring the explicit provisions of the Hindu Succession Act, 1956.
- Because succession opened only in 1989, the matter is squarely governed by Section 8 and the Class I heirs enumerated in the Schedule, giving daughters equal rights.

Respondents' Arguments (Sons)

- Section 6 preserves the Mitakshara coparcenary and therefore governs devolution where the deceased was a coparcener.
- The *property* retained its coparcenary character once a son (Lal Chand) was born; hence succession should follow the rule of survivorship, not Section 8.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
C. Krishna Prasad v. CIT, (1975) 1 SCC 160	Separate <i>property</i> of a sole coparcener revives as coparcenary <i>property</i> on the birth of a son; pre- birth alienations stand.	Illustrated that Babu Ram's <i>property</i> , though separate in 1927, became coparcenary when Lal Chand was born in 1938.
Janki v. Nand Ram, ILR (1889) 11 All 194	<i>Property</i> from an ancestor beyond the third degree is separate; but may become ancestral on birth of male issue.	Quoted to explain how the character of ancestral <i>property</i> can revive with the birth of sons.
Bejai Bahadur Singh v. Bhupindar Bahadur Singh, ILR (1895) 17 All 456	Share obtained on partition remains ancestral vis- à- vis male issue.	Used to support the view that partition does not destroy the ancestral nature for descendants.

Chatturbhooj Meghji v. Dharamsi Naranji, ILR (1885) 9 Bom 438	Same principle as above regarding post-partition shares.	Cited in scholarly extracts adopted by the Court.
Lal Bahadur v. Kanhaia Lal, (1906-07) 34 IA 65	Partition share is separate interest but ancestral vis-à-vis sons.	Reinforced the continuing ancestral character.
Visalatchi Ammal v. Annasamy Sastry, (1869-70) 5 Mad HCR 150	Ancestral character of partitioned <i>property</i> .	Relied upon through secondary literature.
Adurmoni Deyi v. Chowdhry Sib Narain Kur, ILR (1878) 3 Cal 1	Same principle on ancestral <i>property</i> .	Referenced in treatise passages accepted by the Court.
Allah Diya v. Sona Devi, AIR 1942 All 331	Ancestral nature unaffected by partition.	Supporting authority for character of <i>property</i> .
M.T. Pankajammal v. M.T. Parthasarathy Aiyangar, AIR 1946 Mad 99	Adopted son must share with after-born son; timing of interests.	Analogous reasoning on sharing among heirs.
Muttayan Chettiar v. Sangili Vira Pandia Chinnatambiar, (1881-82) 9 IA 128	Classification of separate and coparcenary <i>property</i> .	Cited to delineate categories of <i>property</i> .
Pratap Narain v. CIT, (1967) 63 ITR 505 (All)	Partition share remains ancestral; son's rights attach by birth.	Quoted to affirm that <i>property</i> remained coparcenary despite earlier separation.
CWT v. Chander Sen, (1986) 3 SCC 567	<i>Property</i> inherited under Section 8 devolves on son in individual capacity, not as HUF <i>property</i> .	Discussed to contrast Section 8 succession with coparcenary devolution.
CIT v. P.L. Karuppan Chettiar, 1993 Supp (1) SCC 580	Followed Chander Sen on individual succession under Section 8.	Mentioned as continuing authority.
Additional CIT v. M.	Also followed Chander Sen.	Cited for the same principle.

Karthikeyan, 1994 Supp (2) SCC 112		
Eramma v. Verrupanna, (1966) 2 SCR 626	Section 8 not retrospective; applies only where succession opens after 1956.	Used to affirm that pre-1956 deaths are outside Section 8.
Daya Singh v. Dhan Kaur, (1974) 1 SCC 700	Same as Eramma on non-retrospectivity of Section 8.	Relied upon in construing temporal application of the Act.

Court's Reasoning and Analysis

1. The Court accepted the concurrent factual finding that the holdings were joint family (coparcenary) *property* in the hands of Tulsi Ram's sons. Although Babu Ram had no son in 1927, the birth of Lal Chand in 1938 revived the coparcenary, converting what was momentarily his separate *property* back into ancestral/coparcenary *property*.
2. Under Section 6 of the Hindu Succession Act, 1956, upon the death of a male Hindu coparcener after the commencement of the Act, his interest ordinarily devolves by survivorship. However, the proviso mandates intestate succession under the Act if he leaves a female Class I heir.
3. Because Babu Ram died in 1989 leaving both sons and daughters (female Class I heirs), the proviso to Section 6 was triggered. The notional partition contemplated by Explanation 1 to Section 6 had first to be worked out to determine his "interest." On such a notional partition, Babu Ram would be entitled to one-half of the coparcenary *property* (the other half accruing to his son Lal Chand, the only son born before 1956).
4. That half-share, being the "interest of the deceased," devolves by intestate succession under Section 6 (proviso) read with Section 8, and therefore is distributed equally among all his Class I heirs—his two sons and three daughters.
5. The remaining half-share, already vested in the surviving coparcener(s) on the notional partition, does not descend further by succession. Consequently, Section 8 does not apply to the whole estate, rebutting the appellants' contention that the entire *property* must devolve under Section 8.
6. In reaching this conclusion, the Court distinguished situations governed by Section 8 *simpliciter* (as in Chander Sen) from those where Section 6 applies, reaffirming that the Act overrides prior Hindu law except where the Act itself, through Section 6, preserves the rule of survivorship in defined circumstances.

Holding and Implications

Held: The appeal is allowed in part. Only Babu Ram's notional half-share devolves by intestate succession among all Class I heirs; the remaining half has already vested in the

surviving coparcener(s). The decree of the courts below is modified accordingly; no order as to costs.

Implications: The judgment clarifies the interplay between Section 6 and Section 8 of the Hindu Succession Act where a male coparcener dies after 1956 leaving both male and female Class I heirs. It reiterates that the coparcenary interest is first quantified via a notional partition under Section 6, and only that quantified interest is then distributed under Section 8, thereby limiting the extent to which female heirs can claim in such scenarios. The ruling affects the parties' shares but does not create a new legal doctrine beyond applying established principles.

JUDGMENT

S.B Sinha, J.— Leave granted.

2. Interpretation of some of the provisions of the **Hindu Succession Act, 1956** (for short “the Act”) and, in particular, Sections 6 and 8 thereof arises for consideration in this appeal which arises out of a judgment and order dated 10-10-2005 passed by the High Court of Punjab and Haryana in RSA No. 1627 of 1994 dismissing an appeal from a judgment and order dated 23-5-1994 passed by the Additional District Judge, Patiala affirming a judgment and decree dated 17-5-1990 passed by the Subordinate Judge, 1st Class, Samana decreeing the suit filed by the respondent-plaintiffs herein.

3. The relationship between the parties is not in dispute. Tulsi Ram was the owner of the *property*. He died in the year 1889 leaving behind five sons viz. Waliati, Babu Ram, Charanji Lal, Hukam Chand and Uggar Sain. The aforementioned five sons of Tulsi Ram were members of a Mitakshara coparcenary. We are concerned with the estate of one of the sons of Tulsi Ram viz. Babu Ram, whose children are parties before us. It is not in dispute that Uggar Sain died issueless in 1931. The names of all the brothers were mutated in the year 1927 in respect of the properties left by Tulsi Ram. Babu Ram died in the year 1989 leaving behind two sons viz. Lal Chand and Sohan Lal (respondent-plaintiffs) and three daughters (the appellants herein). Lal Chand was born in 1938 whereas Sohan Lal was born in 1956.

4. A finding of fact has been arrived at that the parties are governed by the Mitakshara School of Hindu Law. The sons of Tulsi Ram were, thus, coparceners. Upon the death of Tulsi Ram, Babu Ram inherited 1/5th share in the *property*. However, on the death of Uggar Sain, 1/20th share of Tulsi Ram's *property* was also devolved on him. Indisputably, the names of the parties were shown in the revenue records having 1/5th share each. The said order of the Revenue Authorities came to be challenged by the respondent-plaintiffs herein, inter alia, on the premise that the defendants had not acquired any right, title and interest in the *property*.

5. The learned trial Judge in his judgment recorded the following:

“9. As a result keeping in view the evidence on record I hold that the plaintiffs and Babu

Ram had constituted a joint Hindu family and out of the land in suit 1/5th share was separate *property* of Babu Ram and 4/5th share was ancestral *property* in the hands of Babu Ram qua the plaintiffs. The issue is decided accordingly.”

6. The suit of the plaintiffs was decreed on the basis thereof. The appellate court also affirmed the decree passed by the learned trial Judge. On a second appeal having been filed by the appellants herein, according to the High Court, the only question which required determination was as to whether the provisions of **Section 8 of the Act** would apply to the facts of the present case or the law as applicable prior to the enforcement of the 1956 Act would apply. The High Court opined that for the purpose of determination of the said question it was necessary to determine the nature of the *property*. Having held that the nature of the *property* must be recorded as Hindu coparcenary and ancestral *property*, it was stated that the law applicable before the Act which came into force would govern the rights of the parties and not the provisions of the Act.

7. Mr Nidesh Gupta, learned counsel appearing on behalf of the appellants submitted that the High Court has committed a manifest error in arriving at the aforementioned findings in total disregard of the provisions of the 1956 Act. The learned counsel would contend that keeping in view the fact that the succession opened only in the year 1989 when Babu Ram died, the question of applying the law as was obtaining prior to coming into force of the Act did not arise. It was urged that the provisions contained in **Section 8 of the Act** are clear and explicit and in that view of the matter the succession of the parties would be governed in terms of the Schedule appended thereto.

8. Mr Manoj Swarup, learned counsel appearing on behalf of the respondents, however, would submit that having regard to the provisions contained in **Section 6 of the Act**, the concept of Mitakshara coparcenary having been saved, the parties would be governed thereby.

9. The Act was enacted to amend and codify the law relating to intestate succession amongst Hindus. **Section 4 of the Act** provides for an overriding effect of the Act. Sub-section (2) of **Section 4 of the Act** reads as under:

“4. (2) For the removal of doubts it is hereby declared that nothing contained in this Act shall be deemed to affect the provisions of any law for the time being in force providing for the prevention of fragmentation of agricultural holdings or for the fixation of ceilings or for the devolution of tenancy rights in respect of such holdings.”

10. **Section 6 of the Act** deals with devolution of interest in coparcenary *property* and is in the following terms:

“6. Devolution of interest in coparcenary *property*.—When a male Hindu dies after the commencement of this Act, having at the time of his death an interest in a Mitakshara coparcenary *property*, his interest in the *property* shall devolve by survivorship upon the surviving members of the coparcenary and not in accordance with this Act:

Provided that, if the deceased had left him surviving a female relative specified in Class I of the Schedule or a male relative specified in that class who claims through such female relative, the interest of the deceased in the Mitakshara coparcenary *property* shall devolve by testamentary or intestate succession, as the case may be, under this Act and not by survivorship.

Explanation 1. — For the purposes of this section, the interest of a Hindu Mitakshara coparcener shall be deemed to be the share in the *property* that would have been allotted to him if a partition of the *property* had taken place immediately before his death, irrespective of whether he was entitled to claim partition or not.

Explanation 2. — Nothing contained in the proviso to this section shall be construed as enabling a person who had separated himself from the coparcenary before the death of the deceased or any of his heirs to claim on intestacy a share in the interest referred to therein.”

A bare perusal of the said provisions would clearly show that where the deceased had left him surviving a female relative specified in Class I of the Schedule, his interest in the Mitakshara coparcenary *property* shall devolve by intestate succession and not by survivorship.

11. We have noticed hereinbefore that a finding of fact has been arrived at that the properties in the hands of Babu Lal and his brothers were joint family *property* .

12. The principle of law applicable in this case is that so long a *property* remains in the hands of a single person, the same was to be treated as a separate *property* , and thus such a person would be entitled to dispose of the coparcenary *property* as the same were his separate *property* , but, if a son is subsequently born to him or adopted by him, the alienation whether it is by way of sale, mortgage or gift, will nevertheless stand, for a son cannot object to alienations so made by his father before he was born or begotten (See C. Krishna Prasad v. CIT [\(1975\) 1 SCC 160](#)). But once a son is born, it becomes a coparcenary *property* and he would acquire an interest therein.

13. In N.R Raghavachariar's Hindu Law Principles & Precedents, 8th Edn. 1987, Section 244, it is stated:

“ ... Besides, it is absolutely immaterial whether the sons were born to the inheritor before or after the inheritance fell in. But if the *property* is inherited from a paternal ancestor beyond the third degree then the *property* is not ancestral as against the inheritor's sons, and the inheritor has absolute powers of disposal over it. So also, if the inheritor has neither a son, son's son nor son's son's son, the *property* is absolute in the inheritor's hands even though he may have other relations, for instance, a great-great-grandson or a paternal uncle, in the case of inheritance from father ([Janki v. Nand Ram](#) ILR (1889) 11 All 194, (1889) 9 Awn 30 (FB)). But *property* which comes to an inheritor from one of his three

immediate paternal ancestors as absolute *property* owing to the absence of sons, grandsons or great-grandsons, becomes ancestral *property* with the birth of any of them, though an alienation made by the inheritor before such birth, cannot be impeached. The character of ancestral *property* is not taken away by there being a partition of the *property* in the family of the inheritor, and though a share of ancestral *property* allotted to a coparcener on partition will be his separate *property* as regards others ([Bejai Bahadur Singh v. Bhupindar Bahadur Singh](#) ILR (1895) 17 All 456) it will be ancestral *property* as against the allottee's sons, grandsons, and great-grandsons whether born before or after the partition. ([Chatturbhooj Meghji v. Dharamsi Naranji](#) ILR (1885) 9 Bom 438; Lal Bahadur v. Kanhaia Lal (1906-07) 34 IA 65, ILR (1906) 29 All 244; Visalatchi Ammal v. Annasamy Sastry (1869-70) 5 Mad HCR 150; [Adurmoni Deyi v. Chowdhry Sib Narain Kur](#) ILR (1878) 3 Cal 1 and Allah Diya v. Sona Devi 1942 All LJ 443, [AIR 1942 All 331.](#))”

14. In Law of Joint Family System, Debts, Gifts, Maintenance, Damdupat, Benami Transaction and Pre-emption, 1st Edn. 1993, by Dr. Paras Diwan, at p. 51, it is stated:

“... They take an interest in it by birth, whether they are in existence at the time of partition or are born subsequently. Such share, however, is ancestral *property* only as regards his male issues. As regards other relations, it is a separate *property* , and if the coparcener dies without leaving male issues, it passes to his heirs by succession. A person who for the time being is the sole surviving coparcener is entitled to dispose of the coparcenary *property* as if it were his separate *property* . He may sell or mortgage the *property* without legal necessity or he may make a gift of it. If a son is subsequently born to him or adopted by him, the alienation, whether it is by way of sale, mortgage or gift, will nevertheless stand, for a son cannot object to alienations made by his father before he was born or begotten.”

15. In M.T Pankajammal v. M.T Parthasarathy Aiyangar AIR 1946 Mad 99, [\(1945\) 2 MLJ 453](#) it was held: (AIR p. 101)

“If it were necessary I would on the circumstances above adverted be prepared to hold that there was no intention on the part of the executant that the son to be adopted had to share the *property* with any son that may be born to him subsequently. But as I have already held on a construction of the settlement deed, the plaintiff became entitled to the *property* only on the death of his father and as an adopted son, according to Hindu law, he had to share it along with the after-born brother and his stepmother.”

16. Although in 1927, Babu Ram had no son and the *property* at his hands became a separate *property* . But, in view of the well-settled principles of Hindu law, as soon as a son was born to him the concept of the *property* being a coparcenary *property* in terms of

the Mitakshara school of Hindu law revived. The law in this behalf has succinctly been stated in Mayne's Hindu Law & Usage, 14th Edn., at pp. 627-28 and 641, in the following terms:

“Where ancestral *property* has been divided between several joint owners, there can be no doubt that if any of them have male issue living at the time of the partition, the share which falls to him will continue to be ancestral *property* in his hands, as regards his male issue, for their rights had already attached upon it, and the partition only cuts off the claims of the dividing members. The father and his male issue still remain joint. The same rule would apply even where the partition had been made before the birth of male issue or before a son is adopted, for the share which is taken at a partition, by one of the coparceners is taken by him as representing his branch. It was held by the Andhra Pradesh High Court that where a father divided the family *property* between him and his sons, the share obtained by him was his self-acquired *property* which he could bequeath to his wife....

Coparceners may hold *property* separately.—An examination into the *property* of the joint family would not be complete without pointing out what *property* may be held by the individual members as their separate *property*. All *property* which is not held in coparcenary is separate *property* and Hindu law recognises separate *property* of individual members of a coparcenary as well as of separated members. (1) *Property* which comes to a man as obstructed heritage (saprati-bandhadaya) is his separate *property*. It is not self-acquired *property* within the meaning of Hindu law, though in their incidents, there may be no difference between the two species.”

(See also Muttayan Chettiar v. Sangili Vira Pandia Chinnatambiar (1881-82) 9 IA 128, ILR (1883) 6 Mad 1 (PC).)

17. The question again came up for consideration before a Division Bench of the Allahabad High Court in Pratap Narain v. CIT [\(1967\) 63 ITR 505 \(All\)](#) wherein Pathak, J. (as His Lordship then was) opined: (ITR p. 510)

“It seems to us that it is now well settled, that when Hindu undivided family *property* is partitioned between the members of a Hindu undivided family, and a share is obtained on such partition by a coparcener, it is ancestral *property* as regards his male issue. They take an interest in it by birth, whether they are in existence at the time of partition or are born subsequently. We are of opinion that it is not correct to say that the share of the *property*, upon partition, constitutes the separate *property* of the coparcener and that it is only subsequently when a son is born that the *property* becomes ancestral *property* or Hindu undivided family *property*. The birth of the son does not alter the nature of the *property*. The *property* all along continues to be coparcenary *property*. ... But upon the birth of a son all the rights which belong to a coparcener belong to that son, and the enlarged rights

hitherto enjoyed by the sole coparcener are now abridged within their normal compass.”

18. We may, however, notice that the same learned Judge in *CWT v. Chander Sen* [\(1986\) 3 SCC 567](#) in a case where the father and his son constituted a HUF and had been carrying on business in a partnership firm, stated the law in the following terms:

“20. We have noted the divergent views expressed on this aspect by the Allahabad High Court, Full Bench of the Madras High Court, Madhya Pradesh and Andhra Pradesh High Courts on one side and the Gujarat High Court on the other.

21. It is necessary to bear in mind the **Preamble to the Hindu Succession Act, 1956**. The Preamble states that it was an Act to amend and codify the law relating to intestate succession among Hindus.

22. In view of the Preamble to the Act i.e that to modify where necessary and to codify the law, in our opinion it is not possible when Schedule indicates heirs in Class I and only includes son and does not include son's son but does include son of a predeceased son, to say that when son inherits the *property* in the situation contemplated by Section 8 he takes it as karta of his own undivided family. The Gujarat High Court's view noted above, if accepted, would mean that though the son of a predeceased son and not the son of a son who is intended to be excluded under Section 8 to inherit, the latter would by applying the old Hindu law get a right by birth of the said *property* contrary to the scheme outlined in Section 8. Furthermore as noted by the Andhra Pradesh High Court that the Act makes it clear by Section 4 that one should look to the Act in case of doubt and not to the pre-existing Hindu law. It would be difficult to hold today the *property* which devolved on a Hindu under **Section 8 of the Hindu Succession Act** would be HUF in his hand vis-à-vis his own son; that would amount to creating two classes among the heirs mentioned in Class I, the male heirs in whose hands it will be joint Hindu family *property* and vis-à-vis son and female heirs with respect to whom no such concept could be applied or contemplated. It may be mentioned that heirs in Class I of Schedule under **Section 8 of the Act** included widow, mother, daughter of predeceased son, etc.”

19. In para 15, however, the law was stated as under:

“15. It is clear that under the Hindu law, the moment a son is born, he gets a share in the father's *property* and becomes part of the coparcenary. His right accrues to him not on the death of the father or inheritance from the father but with the very fact of his birth. Normally, therefore whenever the father gets a *property* from whatever source from the grandfather or from any other source, be it separated *property* or not, his son should have a share in that and it will become part of the joint Hindu family of his son and grandson and other members who form joint Hindu family with him. But the question is: Is the

position affected by **Section 8 of the Hindu Succession Act**, 1956 and if so, how? The basic argument is that Section 8 indicates the heirs in respect of certain *property* and Class I of the heirs includes the son but not the grandson. It includes, however, the son of the predeceased son. It is this position which has mainly induced the Allahabad High Court in the two judgments, we have noticed, to take the view that the income from the assets inherited by son from his father from whom he has separated by partition can be assessed as income of the son individually. Under **Section 8 of the Hindu Succession Act**, 1956 the *property* of the father who dies intestate devolves on his son in his individual capacity and not as karta of his own family. On the other hand, the Gujarat High Court has taken the contrary view.”

The said decision has been followed by this Court in CIT v. P.L Karuppan Chettiar [1993 Supp \(1\) SCC 580](#) and CIT v. M. Karthikeyan [1994 Supp \(2\) SCC 112](#).

20. In Eramma v. Verrupanna [\(1966\) 2 SCR 626](#), AIR 1966 SC 1879 this Court observed: (SCR p. 629 E-F)

“It is clear from the express language of the section that it applies only to coparcenary *property* of the male Hindu holder who dies after the commencement of the Act. It is manifest that the language of Section 8 must be construed in the context of **Section 6 of the Act**. We accordingly hold that the provisions of **Section 8 of the Hindu Succession Act** are not retrospective in operation and where a male Hindu died before the Act came into force i.e where succession opened before the Act, **Section 8 of the Act** will have no application.”

(See also Daya Singh v. Dhan Kaur [\(1974\) 1 SCC 700](#).)

21. The Act indisputably would prevail over the old Hindu law. We may notice that Parliament, with a view to confer right upon the female heirs, even in relation to the joint family *property*, enacted the Hindu Succession Act, 2005. Such a provision was enacted as far back in 1987 by the State of Andhra Pradesh. The succession having opened in 1989, evidently, the provisions of the Amendment Act, 2005 would have no application. Sub-section (1) of **Section 6 of the Act** governs the law relating to succession on the death of a coparcener in the event the heirs are only male descendants. But, the proviso appended to sub-section (1) of **Section 6 of the Act** creates an exception. First son of Babu Lal viz. Lal Chand, was, thus, a coparcener. Section 6 is an exception to the general rules. It was, therefore, obligatory on the part of the respondent-plaintiffs to show that apart from Lal Chand, Sohan Lal will also derive the benefit thereof. So far as the second son, Sohan Lal is concerned, no evidence has been brought on record to show that he was born prior to coming into force of the **Hindu Succession Act, 1956**.

22. Thus, it was the half-share in the *property* of Babu Ram, which would devolve upon all his heirs and legal representatives as at least one of his sons was born prior to coming

into force of the Act.

23. Except to the aforementioned extent, in our opinion, the courts below are correct in applying the provisions of **Section 6 of the Act** and holding that Section 8 thereof will have no application. The appeal is allowed in part and to the aforementioned extent. The decree would be modified accordingly. No costs.